

Jagdish Kumar & Anr vs State Of H.P And Anr on 16 July, 2024

Neutral Citation No. (2024:HHC:5184) Page |1 IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA Cr. MMO No. 779 of 2022 Reserved on: 01.07.2024 Date of Decision: 16.07.2024 .

Jagdish Kumar & Anr.

....Petitioners

Versus

State of H.P and anr.
Coram

....Respondents

Hon'ble Mr Justice Rakesh Kainthla, Judge. Whether approved for reporting? No For the Petitioners : Mr. R.L. Chaudhary, Advocate.

For Respondents No.1 to 3 : Mr. Ajit Sharma, Deputy Advocate General.

For Respondent No.4 : Ms. Manisha Kumari, Advocate.

For Respondent No.5 to 7 : Mr. Abhishek Sharma, Advocate.

Rakesh Kainthla, Judge The petitioners have filed the present petition for quashing of FIR No.25/2022 dated 04.07.2022 for the commission of offences punishable under Sections 498(A), 323, 504, and 506 read with Section 34 of IPC registered at Women Police Station, Bhiuli, District Mandi, H.P.

2. Briefly stated, the facts giving rise to the present petition are that respondent No.4/informant made a complaint to the police stating that she was married to Yaman Thakur as per Neutral Citation No. (2024:HHC:5184) Page |2 Hindu Rites and Customs on 21.10.2015. One daughter was born to the parties. The behaviour of her husband became cruel one month after the marriage. He started abusing and beating the informant.

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He used to beat the informant at the instance of his parents whenever he visited his home on leave. His parents and brother-

in-law assisted him. Her husband and parents-in-law started demanding dowry. They also started demanding the shagun given to the informant at the time of the marriage. The informant resided with her husband from 2017 till September 2018 at Pathankot. His behaviour was not good with the informant. He used to abuse and beat the informant. The informant's parents-in-law, sister-in-

law, and brother-in-law gave beatings to her on 26.04.2022 and turned her out of her matrimonial home. They locked the house.

The informant made various complaints to the Panchayat and police, where the petitioners acknowledged their fault. The husband was not providing any maintenance to the informant and he had retained her Stridhan; hence, a prayer was made to take action against the respondents.

3. The police registered the FIR and conducted the investigation. The police seized copies of the various compromises effected between the parties. The informant also stated that her Neutral Citation No. (2024:HHC:5184) Page |3 father-in-law had acted indecently with her in the year 2017.

Hence, her statement was recorded on 07.07.2022. Section 354A of IPC was also added. The police filed a charge sheet before the court .

after the completion of the investigation.

4. The petitioners filed the present petition asserting that the marriage between the informant and her husband was solemnized on 21.10.2015. She resided in her matrimonial home.

Her behaviour was very adamant. The petitioners requested her to mend her behaviour. The informant assured them not to repeat the mistakes and mend her behaviour in future. The petitioners got the informant admitted to B.Ed. Noble College, Pandoh and they spent the money for her education. The petitioner No.1 retired in November, 2016. The family members counselled the informant but she became violent and threatened to leave her matrimonial home. She brought her father and two-three relatives, who convinced the parties to reside peacefully. The informant left her matrimonial home on 20.11.2016 and did not return thereafter. The petitioners made many efforts to bring her back; however, she refused and filed a complaint against the petitioners. The informant went to her parental home to deliver her child and returned after five months. She (informant) gave beatings to Neutral Citation No. (2024:HHC:5184) Page |4 petitioner No.2, her mother-in-law. She had a quarrel with petitioner No.2 on 26.04.2022 and the matter was reported to the police. The informant withdrew her daughter from Noble School .

Pandoh, where she was admitted for education by her father.

Complaints were made to the police regarding the behaviour of the informant. She filed the petitions under Section 125 of Cr.P.C. and Section 12 of the Protection of Women from Domestic Violence Act.

She filed a false FIR against the petitioners. She involved all the family members without any justification. Petitioner No.1 is serving in Jammu and Kashmir and he does not reside at home. Petitioner No.2 is suffering from various diseases and she was beaten by the informant. The petitioners had only counselled the informant and they were falsely implicated; hence, it was prayed that the present petition be allowed and the FIR be quashed.

5. The State has filed a reply reproducing the contents of the FIR. It was asserted that the informant had visited her parental home after she was beaten on 04.12.2016. A compromise was effected on 19.12.2016. Nobody came to take care of the informant and her daughter. A complaint was made against the informant in the Police Post, Pandoh but the matter was settled between the parties. The police found sufficient grounds to file the charge sheet Neutral Citation No. (2024:HHC:5184) Page |5 and accordingly filed a charge sheet before the Competent Court of law against the petitioners and other accused.

6. A separate reply was filed by respondents No. 5 to 7 .

admitting the contents of the petition. It was asserted that the informant hurled abuses and administered beatings to petitioner No.2, her mother-in-law without any cause. She had filed a false FIR.

7. I have heard Mr R.L. Chaudhary, learned counsel for the petitioners, Mr Ajit Sharma, learned Deputy Advocate General for respondents No.1 to 3, Ms Manisha Kumari, learned counsel for respondent No.4/informant and Mr. Abhishek Sharma, learned counsel for respondents No.5 to 7.

8. Mr. R.L. Chaudhary, learned counsel for the petitioners referred to various documents annexed to the petition and submitted that the petitioners had filed various complaints against the informant. She has filed a false complaint against the petitioners without any justification; therefore, he prayed that the present petition be allowed and the FIR be quashed.

9. Mr. Ajit Sharma, learned Deputy Advocate General, for respondents No.1 to 3/State submitted that the Court exercises a limited jurisdiction while deciding a petition under Section 482 of Neutral Citation No. (2024:HHC:5184) Page |6 Cr.P.C. It does not go into the truthfulness or otherwise of the allegations in the FIR. The allegations in the FIR constitute the commission of a cognizable offence; hence, he prayed that the .

petition be dismissed.

10. Ms Manisha Kumari, learned counsel for respondent No.4 adopted these submissions of learned Deputy Advocate General and submitted that the factual investigation is to be conducted by the learned Trial Court, where the matter is pending and the allegations in the FIR are sufficient to constitute the commission of the offence, therefore, she prayed that the present petition be dismissed.

11. Mr. Abhishek Sharma, learned counsel for respondents No. 5 to 7 supported the submissions of Mr. R.L. Chaudhary, learned counsel for the petitioners and submitted that the petition be allowed and FIR be quashed.

12. I have given thought to the rival submissions at the bar and have gone through the records carefully.

13. The law regarding the exercise of jurisdiction under Section 482 of Cr.P.C. was considered by the Hon'ble Supreme Court in A.M. Mohan v. State, 2024 SCC OnLine SC 339, wherein it was observed:

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9. The law with regard to the exercise of jurisdiction under Section 482 of Cr. P.C. to quash complaints and criminal proceedings has been succinctly summarized by this Court in the case of Indian Oil Corporation v. NEPC India Limited (2006) 6 SCC 736: 2006 INSC 4521 after considering the earlier .

precedents. It will be apposite to refer to the following observations of this Court in the said case, which read thus:

"12. The principles relating to the exercise of jurisdiction under Section 482 of the Code of Criminal Procedure to quash complaints and criminal proceedings have been stated and reiterated by this Court in several decisions. To mention a few--

Madhavrao Jiwajirao Scindia v. Sambhajirao Chandrojirao Angre [(1988) 1 SCC 692: 1988 SCC (Cri) 234], State of Haryana v. Bhajan Lal [1992 Supp (1) SCC 335: 1992 SCC (Cri) 426], Rupan Deol Bajaj v. Kanwar Pal Singh Gill [(1995) 6 SCC 194: 1995 SCC (Cri) 1059], Central Bureau of Investigation v. Duncans Agro Industries Ltd. [(1996) 5 SCC 591: 1996 SCC (Cri) 1045], State of Bihar v. Rajendra Agrawalla [(1996) 8 SCC 164: 1996 SCC (Cri) 628], Rajesh Bajaj v. State NCT of Delhi [(1999) 3 SCC 259: 1999 SCC (Cri) 401], Medchl Chemicals & Pharma (P) Ltd. v. Biological E. Ltd. [(2000) 3 SCC 269: 2000 SCC (Cri) 615], Hridaya Ranjan Prasad Verma v. State of Bihar [(2000) 4 SCC 168: 2000 SCC (Cri) 786], M. Krishnan v. Vijay Singh [(2001) 8 SCC 645: 2002 SCC (Cri) 19] and Zandu Pharmaceutical Works Ltd. v. Mohd. Sharaful Haque [(2005) 1 SCC 122 : 2005 SCC (Cri) 283]. The principles, relevant to our purpose are:

(i) A complaint can be quashed where the allegations made in the complaint, even if they are taken at their face value and accepted in their entirety, do not prima facie constitute any offence or make out the case alleged against the accused.

For this purpose, the complaint has to be examined as a whole, but without examining the merits of the allegations. Neither a detailed Neutral Citation No. (2024:HHC:5184) Page |8 inquiry nor a

meticulous analysis of the material nor an assessment of the reliability or genuineness of the allegations in the complaint is warranted while examining prayer for quashing a complaint.

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(ii) A complaint may also be quashed where it is a clear abuse of the process of the court, as when the criminal proceeding is found to have been initiated with mala fides/malice for wreaking vengeance or to cause harm, or where the allegations are absurd and inherently improbable.

(iii) The power to quash shall not, however, be used to stifle or scuttle a legitimate prosecution. The power should be used sparingly and with abundant caution.

(iv) The complaint is not required to verbatim reproduce the legal ingredients of the offence alleged. If the necessary factual foundation is laid in the complaint, merely on the ground that a few ingredients have not been stated in detail, the proceedings should not be quashed. Quashing of the complaint is warranted only where the complaint is so bereft of even the basic facts which are necessary for making out the offence.

(v.) A given set of facts may make out : (a) purely a civil wrong; (b) purely a criminal offence; or (c) a civil wrong as also a criminal offence. A commercial transaction or a contractual dispute, apart from furnishing a cause of action for seeking remedy in civil law, may also involve a criminal offence. As the nature and scope of a civil proceeding are different from a criminal proceeding, the mere fact that the complaint relates to a commercial transaction or breach of contract, for which a civil remedy is available or has been availed, is not by itself a ground to quash the criminal proceedings. The test is Neutral Citation No. (2024:HHC:5184) Page |9 whether the allegations in the complaint disclose a criminal offence or not.

14. Similar is the judgment in Maneesha Yadav v. State of U.P., 2024 SCC OnLine SC 643, wherein it was held: -

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12. We may gainfully refer to the following observations of this Court in the case of State of Haryana v. Bhajan Lal 1992 Supp (1) SCC 335: 1990 INSC 363:

"102. In the backdrop of the interpretation of the various relevant provisions of the Code under Chapter XIV and of the principles of law enunciated by this Court in a series of decisions relating to the exercise of the extraordinary power under Article 226 or the inherent powers under Section 482 of the Code which we have extracted and reproduced above, we give the following categories of cases by way of illustration wherein such power could be exercised either to prevent abuse of the process of any court or otherwise to secure the ends of justice, though it may not be possible to lay down any precise, clearly defined and sufficiently channelised and inflexible guidelines or rigid formulae and to give an exhaustive list of myriad kinds of cases

wherein such power should be exercised.

(1) Where the allegations made in the first information report or the complaint, even if they are taken at their face value and accepted in their entirety do not prima facie constitute any offence or make out a case against the accused. (2) Where the allegations in the first information report and other materials, if any, accompanying the FIR do not disclose a cognizable offence, justifying an investigation by police officers under Section 156(1) of the Code except under an order of a Magistrate within the purview of Section 155(2) of the Code.

(3) Where the uncontroverted allegations made in the FIR or complaint and the evidence collected in Neutral Citation No. (2024:HHC:5184) P a g e | 10 support of the same do not disclose the commission of any offence and make out a case against the accused.

(4) Where the allegations in the FIR do not .

constitute a cognizable offence but constitute only a non-cognizable offence, no investigation is permitted by a police officer without an order of a Magistrate as contemplated under Section 155(2) of the Code.

(5) Where the allegations made in the FIR or complaint are so absurd and inherently improbable on the basis of which no prudent person can ever reach a just conclusion that there is sufficient ground for proceeding against the accused. (6) Where there is an express legal bar engrafted in any of the provisions of the Code or the concerned Act (under which a criminal proceeding is instituted) to the institution and continuance of the proceedings and/or where there is a specific provision in the Code or the concerned Act, providing efficacious redress for the grievance of the aggrieved party.

(7) Where a criminal proceeding is manifestly attended with mala fide and/or where the proceeding is maliciously instituted with an ulterior motive for wreaking vengeance on the accused and with a view to spite him due to private and personal grudge.

103. We also give a note of caution to the effect that the power of quashing a criminal proceeding should be exercised very sparingly and with circumspection and that too in the rarest of rare cases; that the court will not be justified in embarking upon an enquiry as to the reliability or genuineness or otherwise of the allegations made in the FIR or the complaint and that the extraordinary or inherent powers do not confer an Neutral Citation No. (2024:HHC:5184) P a g e | 11 arbitrary jurisdiction on the court to act according to its whim or caprice."

15. The present petition has to be considered as per the parameters laid down by the Hon'ble Supreme Court.

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16. Mr. R.L. Chaudhary, learned counsel for the petitioners referred to various letters written by the petitioners to various authorities complaining about the behaviour of the informant to submit that the informant is harassing the petitioners and the petitioners are not harassing her. The documents filed by the petitioners along with the petition cannot be looked into while deciding a petition under Section 482 of Cr.P.C. It was laid down by the Hon'ble Supreme Court in MCD v. Ram Kishan Rohtagi, (1983) 1 SCC 1: 1983 SCC (Cri) 115, that the proceedings can be quashed if on the face of the complaint and the papers accompanying the same no offence is constituted. It is not permissible to add or subtract anything. It was observed:

"10. It is, therefore, manifestly clear that proceedings against an accused in the initial stages can be quashed only if on the face of the complaint or the papers accompanying the same, no offence is constituted. In other words, the test is that taking the allegations and the complaint as they are, without adding or subtracting anything, if no offence is made out then the High Court will be justified in quashing the proceedings in exercise of its powers under Section 482 of the present Code."

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17. Madras High Court also held in Ganga Bai v. Shriram, 1990 SCC OnLine MP 213: ILR 1992 MP 964: 1991 Cri LJ 2018, that the fresh evidence is not permissible or desirable in the proceedings .

under Section 482 of Cr.P.C. It was observed:

"Proceedings under Section 482, Cr.P.C. cannot be allowed to be converted into a full-dressed trial. Shri Maheshwari filed a photostate copy of an order dated 28.7.1983, passed in Criminal Case No. 1005 of 1977, to which the present petitioner was not a party. Fresh evidence at this stage is neither permissible nor desirable. The respondent by filing this document is virtually introducing additional evidence, which is not the object of Section 482, Cr.P.C."

18. Andhra Pradesh High Court also took a similar view in Bharat Metal Box Company Limited, Hyderabad and Others vs. G. K. Strips Private Limited and another, 2004 STPL 43 AP, and held:

"9. This Court can only look into the complaint and the documents filed along with it and the sworn statements of the witnesses if any recorded. While judging the correctness of the proceedings, it cannot look into the documents, which are not filed before the lower Court. Section 482 Cr.PC debars the Court to look into fresh documents, in view of the principles laid down by the Supreme Court in State of Karnataka v. M. Devendrappa and another, 2002 (1) Supreme

192. The relevant portion of the said judgment reads as follows:

"The complaint has to be read as a whole. If it appears that on consideration of the allegations, in the light of the statement made on oath of the complainant that the

ingredients of the offence or offences are disclosed and there is no material to show that the complaint is mala fide, frivolous or vexatious, in that event there would be no justification for interference by the High Court. When information is lodged at the Police Station Neutral Citation No. (2024:HHC:5184) P a g e | 13 and an offence is registered, then the mala fides of the informant would be of secondary importance. It is the material collected during the investigation and evidence led in Court, which decides the fate of the accused person. The allegations of mala fides against .

the informant are of no consequence and cannot by itself be the basis for quashing the proceedings".

19. A similar view was taken in Mahendra K.C. v. State of Karnataka, (2022) 2 SCC 129: (2022) 1 SCC (Cri) 401 wherein it was observed on page 142:

"16. ... the test to be applied is whether the allegations in the complaint as they stand, without adding or detracting from the complaint, prima facie establish the ingredients of the offence alleged. At this stage, the High Court cannot test the veracity of the allegations nor for that matter can it proceed in the manner that a judge conducting a trial would, on the basis of the evidence collected during the course of the trial."

20. This position was reiterated in Supriya Jain v. State of Haryana, (2023) 7 SCC 711: 2023 SCC OnLine SC 765 wherein it was held:

13. All these documents which the petitioner seeks to rely on, if genuine, could be helpful for her defence at the trial but the same are not material at the stage of deciding whether quashing as prayed for by her before the High Court was warranted or not. We, therefore, see no reason to place any reliance on these three documents.

21. A similar view was taken in Iveco Magirus Brandschutztechnik GMBH v. Nirmal Kishore Bhartiya, (2024) 2 SCC 86: 2023 SCC OnLine SC 1258 wherein it was observed:

Neutral Citation No. (2024:HHC:5184) P a g e | 14 "63. Adverting to the aspect of the exercise of jurisdiction by the High Courts under Section 482CrPC, in a case where the offence of defamation is claimed by the accused to have not been committed based on any of the Exceptions and a prayer for quashing is made, the law seems to be well settled that the .

High Courts can go no further and enlarge the scope of inquiry if the accused seeks to rely on materials which were not there before the Magistrate. This is based on the simple proposition that what the Magistrate could not do, the High Courts may not do. We may not be understood to undermine the High Courts' powers saved by Section 482CrPC; such powers are always available to be exercised ex debito justitiae i.e. to do real and substantial justice for the administration of which alone the High Courts exist. However, the tests laid down for quashing an FIR or criminal

proceedings arising from a police report by the High Courts in the exercise of jurisdiction under Section 482CrPC not being substantially different from the tests laid down for quashing a process issued under Section 204 read with Section 200, the High Courts on recording due satisfaction are empowered to interfere if on a reading of the complaint, the substance of statements on oath of the complainant and the witness, if any, and documentary evidence as produced, no offence is made out and that proceedings, if allowed to continue, would amount to an abuse of the legal process. This too, would be impermissible if the justice of a given case does not overwhelmingly so demand." (Emphasis supplied)

22. Therefore, it is not possible for the Court to look into the documents annexed to the petition.

23. The FIR specifically mentions that the petitioners had given beatings to the informant. It was mentioned that on 26.04.2022, the petitioners and other persons turned the informant out of her matrimonial home and the matter was reported to the police and Panchayat, where the parties reconciled. The informant had also made a statement against petitioner No.1 that he had acted indecently with her, on which the police added Section 354A of the Neutral Citation No. (2024:HHC:5184) P a g e | 15 IPC. The informant made a statement on oath under Section 164 of Cr.P.C. before the learned Magistrate. Thus, there is sufficient material to show that cognizable offences were committed by the .

petitioners.

24. It was submitted that the contents of the FIR are false and it was registered because the petitioners had filed various complaints against the informant. It was laid down by the Hon'ble Supreme Court in Priyanka Jaiswal vs. State of Jharkhand, 2024 SCC OnLine SC 685 that the Court exercises extra-ordinary jurisdiction under Section 482 of Cr.P.C. and cannot conduct a mini-trial or enter into an appreciation of an evidence of a particular case. It was observed:-

"13. We say so for reasons more than one. This Court in catena of Judgments has consistently held that at the time of examining the prayer for quashing of the criminal proceedings, the court exercising extra-ordinary jurisdiction can neither undertake to conduct a mini-trial nor enter into appreciation of evidence of a particular case. The correctness or otherwise of the allegations made in the complaint cannot be examined on the touchstone of the probable defence that the accused may raise to stave off the prosecution and any such misadventure by the Courts resulting in proceedings being quashed would be set aside. This Court in the case of Akhil Sharda 2022 SCC OnLine SC 820 held to the following effect:

"28. Having gone through the impugned judgment and order passed by the High Court by which the High Court has set aside the criminal Neutral Citation No. (2024:HHC:5184) P a g e | 16 proceedings in the exercise of powers under Section 482 Cr. P.C., it appears that the High Court has virtually conducted a mini-trial, which as such is not permissible at this stage and while deciding the application under Section 482 Cr. P.C. As .

observed and held by this Court in a catena of decisions no mini-trial can be conducted by the High Court in the exercise of powers under Section 482 Cr. P.C. jurisdiction and at the stage of deciding the application under Section 482 Cr. P.C., the High Court cannot get into appreciation of evidence of the particular case being considered."

25. A similar view was taken in Maneesha Yadav's case (supra), wherein it was held that: -

"13. As has already been observed hereinabove, the Court would not be justified in embarking upon an enquiry as to the reliability or genuineness or otherwise of the allegations made in the FIR or the complaint at the stage of quashing of the proceedings under Section 482 Cr. P.C. However, the allegations made in the FIR/complaint, if taken at its face value, must disclose the commission of an offence and make out a case against the accused. At the cost of repetition, in the present case, the allegations made in the FIR/complaint even if taken at its face value, do not disclose the commission of an offence or make out a case against the accused. We are of the considered view that the present case would fall under Category-3 of the categories enumerated by this Court in the case of Bhajan Lal (supra).

14. We may gainfully refer to the observations of this Court in the case of Anand Kumar Mohatta v. State (NCT of Delhi), Department of Home(2019) 11 SCC 706: 2018 INSC 1060:

"14. First, we would like to deal with the submission of the learned Senior Counsel for Respondent 2 that once the charge sheet is filed, the petition for quashing of FIR is untenable. We do not see any merit in this submission, keeping in mind the position of this Court in Joseph Salvaraj A. v. State of Gujarat [Joseph Salvaraj Neutral Citation No. (2024:HHC:5184) P a g e | 17 A. v. State of Gujarat, (2011) 7 SCC 59 : (2011) 3 SCC (Cri) 23]. In Joseph Salvaraj A. [Joseph Salvaraj A. v. State of Gujarat, (2011) 7 SCC 59 : (2011) 3 SCC (Cri) 23], this Court while deciding the question of whether the High Court could entertain the Section 482 petition for quashing of .

FIR when the charge-sheet was filed by the police during the pendency of the Section 482 petition, observed : (SCC p. 63, para 16) "16. Thus, the general conspectus of the various sections under which the appellant is being charged and is to be prosecuted would show that the same are not made out even prima facie from the complainant's FIR. Even if the charge sheet had been filed, the learned Single Judge [Joesph Saivaraj A. v. State of Gujarat, 2007 SCC OnLine Guj 365] could have r still examined whether the offences alleged to have been committed by the appellant were prima facie made out from the complainant's FIR, charge-sheet, documents, etc. or not."

26. Hence, it is not permissible for the Court to go into the truthfulness or otherwise of the allegations.

27. A charge sheet has been filed before the Court. The learned Trial Court is seized of the matter. It was laid down by the Hon'ble Supreme Court in *Iqbal v. State of U.P.*, (2023) 8 SCC 734:

2023 SCC OnLine SC 949 that when the charge sheet has been filed, learned Trial Court should be left to appreciate the same. It was observed:

"At the same time, we also take notice of the fact that the investigation has been completed and charge-sheet is ready to be filed. Although the allegations levelled in the FIR do not inspire any confidence particularly in the absence of any Neutral Citation No. (2024:HHC:5184) P a g e | 18 specific date, time, etc. of the alleged offences, we are of the view that the appellants should prefer a discharge application before the trial court under Section 227 of the Code of Criminal Procedure (CrPC). We say so because even according to the State, the investigation is over and the charge sheet is ready to .

be filed before the competent court. In such circumstances, the trial court should be allowed to look into the materials which the investigating officer might have collected forming part of the charge sheet. If any such discharge application is filed, the trial court shall look into the materials and take a call whether any discharge case is made out or not."

28. Thus, this Court should not exercise extraordinary jurisdiction when the learned Trial Court is seized of the matter.

29. Therefore, it is not possible to quash the FIR in the exercise of the extraordinary jurisdiction of the Court. The allegations in the FIR show the commission of cognizable offences and they are to be tested by leading evidence before the learned Trial Court.

30. Thus, the present petition fails and the same is dismissed.

31. The observation made herein before shall remain confined to the disposal of the petition and will have no bearing, whatsoever, on the merits of the case.

(Rakesh Kainthla) Judge 16th July, 2024 (Saurav pathania)